obstruction is fixed, intended to be permanent, or incapable of abatement.

The HOA alleges that the Neighbor Defendants "have and continue to modify" portions of Appian Creek in an unpermitted manner, constricting water flow and causing overflow flooding to the HOA property. (FAC ¶ 20.) It further alleges that even after the County cleared the storm drains, the HOA "continued to be inundated with flood waters" during the winter of 2023 which required mitigation. (FAC ¶ 18.) Even if recurring flooding might not restart the limitations period were the alleged condition permanent, as noted, the FAC does not establish permanency as a matter of law.

B. Whether the FAC Otherwise States a Cause of Action Against Chang

Chang argues the FAC fails to state facts sufficient to constitute a cause of action because the allegations are pleaded collectively against the "Neighbor Defendants" and certain allegations are made "upon information and belief." In substance, Chang's objection is that the FAC does not describe Chang's individual conduct with sufficient detail, an argument sounding in uncertainty rather than failure to state a claim. Demurrers for uncertainty are disfavored and strictly construed, particularly where any lack of detail can be clarified through discovery. (*Chen v. Berenjian* (2019) 33 Cal.App.5th 811, 822.)

Here, the FAC alleges that the Neighbor Defendants failed to maintain, and upon information and belief, they filled in or otherwise obstructed, portions of the creek running through their respective properties, and that they made unpermitted modifications that constricted the flow of water and caused flooding downstream, including to the Association Development. (FAC ¶¶ 19, 30, 32–44.) These allegations, accepted as true, are sufficient to apprise Chang of the conduct alleged. And while it is better practice identify the information giving rise to allegations made on information and belief, the Court declines to require the HOA to amend on this ground. As the property owner, Chang is in a position to know what was or was not done to the creek, and the specific basis for the HOA's contention that Chang obstructed the creek in a manner that harmed the HOA may be obtained through discovery.

V. Conclusion

For the foregoing reasons, the demurrer is **overruled**. Plaintiff shall prepare the order and file and serve notice of entry of the order. Defendant shall answer to the FAC within 15 days after service of notice of entry of the order.

3. 9:00 AM CASE NUMBER: C23-01274
CASE NAME: NATASHA WINDOM VS. SKSS ENTERPRISES INC.
***HEARING ON MOTION IN RE: FINAL APPROVAL FOR CLASS ACTION AND PAGA SETTLEMENT SET BY THE COURTROOM**
FILED BY:
TENTATIVE RULING:*

Summary

Plaintiff Natasha Windom ("Plaintiff") filed Motion for Final Approval of Class Action and PAGA Settlement is **granted** as set forth below. No appearance is required at the hearing on March 4, 2026.

Background

Plaintiff Natasha Windom ("Plaintiff") filed Motion for Final Approval of Class Action and PAGA Settlement in the gross settlement amount of $250,000.00 on February 9, 2026, which was supported by Notice, Memorandum of Points and Authorities, Declarations of Arrash Fatahi, Natasha Windom, Stacy Shim and Proposed Judgment and Order. The Motion seeks an order:

1. Granting final approval of the proposed Class Action Settlement Agreement;
2. Awarding Class Counsel attorneys' fees in the amount of $83,333.33 and reimbursement of litigation costs not to exceed $25,000.00;
3. Awarding Plaintiff an Incentive Award in the amount of $10,000.00;
4. Awarding $4,990.00 to Apex Class Action, LLC ("APEX") for its settlement administration expenses; and
5. Approving allocation of $10,000.00 as civil penalties under the Private Attorneys' General Act of 2004 ("PAGA"), 75% of which ($7,500.00) will be paid to the California Labor and Workforce Development Agency, and 25% of which ($2,500.00) will be distributed to PAGA Members based on the number of pay periods worked during the PAGA Period.

There is no timely opposition to the Motion.

Analyses

1. **Legal Standards**

The primary determination to be made is whether the proposed settlement is "fair, reasonable, and adequate," under *Dunk v. Ford Motor Co*. (1996) 48 Cal.App.4th 1794, 1801, including "the strength of plaintiffs' case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the state of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction … to the proposed settlement."

Because this matter also proposes to settle PAGA claims, the Court also must consider the criteria that apply under that statute. The Court of Appeal's decision in *Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, provides guidance on this issue. In *Moniz*, the court found that the "fair, reasonable, and adequate" standard applicable to class actions applies to PAGA settlements. (*Id.*, at 64.) The Court also held that the trial court must assess "the fairness of the settlement's allocation of civil penalties between the affected aggrieved employees[.]" (*Id*., at 64-65.)

California law provides some general guidance concerning judicial approval of any settlement. First, public policy generally favors settlement. (*Neary v. Regents of University of California* (1992) 3 Cal.4th 273.) Nonetheless, the court should not approve an agreement contrary to law or public policy.(*Bechtel Corp. v. Superior Court* (1973) 33 Cal.App.3d 405, 412; *Timney v. Lin* (2003) 106 Cal.App.4th 1121, 1127.) Moreover, "[t]he court cannot surrender its duty to see that the judgment to be entered is a just one, nor is the court to act as a mere puppet in the matter." (*California State*

Auto. Assn. Inter-Ins. Bureau v. Superior Court (1990) 50 Cal.3d 658, 664.) As a result, courts have specifically noted that *Neary* does not always apply, because "[w]here the rights of the public are implicated, the additional safeguard of judicial review, though more cumbersome to the settlement process, serves a salutatory purpose." (*Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America* (2006) 141 Cal.App.4th 48, 63.)

2. Attorney fees, costs, and plaintiff incentive award

Plaintiff seeks one-third (33.3%) of the total settlement amount as fees, relying on the "common fund" theory. Even a proper common fund-based fee award, however, should be reviewed through a lodestar cross-check In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503, the Supreme Court endorsed the use of a lodestar cross-check as a way to determine whether the percentage allocated is reasonable. It stated: "If the multiplier calculated by means of a lodestar cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment." (*Id*., at 505.) Following typical practice, however, consideration of the fee award was deferred to the motion for final approval.

Counsel now provides an estimated lodestar fee of $93,345.00. This is based on a total of 128.2 hours, with hourly rates ranging from $600-850.00. The amount of fees billed exceed the amount requested. No adjustment is necessary. Litigation costs of $16,083.46 are reasonable and are approved. The finds that the amount of $4,990.00 to Apex Class Action, LLC ("APEX") for its settlement administration expenses is reasonable.

Plaintiff requests an incentive payment of $10,000. Criteria for evaluation of such requests are discussed in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-807. She submits a declaration attesting to his time and effort spent on the matter (about 30 hours), as well as the risk she took by becoming a plaintiff. She released other individual claims, but does not suggest that she had any other claim of value that is released in the settlement. All things considered, the amount is approved.

The moving papers sufficiently establish that the proposed settlement is fair, reasonable, and adequate to justify final approval. Notice to the class was adequately provided.

Ruling

The motion is **granted**. Counsel are directed to conform the proposed order lodged on February 10, 2026 to reflect this tentative ruling, the other findings in the previously submitted proposed order, and a final judgment. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented, to be arranged by counsel in consultation with the Department Clerk.

Plaintiffs' counsel are to submit a compliance statement one week before the compliance hearing date, which shall be set by the Clerk of the Court in due course (not later than ninety (90) days from the date of this hearing). Five percent (5%) of the attorney's fees are to be withheld by the claims administrator pending satisfactory compliance as found by the Court. No appearance is required at the hearing on March 4, 2026.